

VI. SYNTHESIS

a. Introduction to Section VI

This section synthesizes the documented findings of the preceding sections of this brief. It introduces no new evidence; every factual proposition restated below has been established in Sections I through V with primary-source citation, and the reader is referred to those sections for the underlying record.

The synthesis proceeds in seven parts. Section VI(b) restates, in compressed form, the central finding of each of the three substantive pillars. Section VI(c) advances the brief's principal thesis — that the three documented patterns are not three independent failures but a single compound failure operating on the same population in the same time frame. Section VI(d) addresses the documented government trajectory across multiple premierships within which the compound pattern has been produced and sustained. Section VI(e) examines the documented data-opacity finding as a thread that runs through all three pillars and that materially affects the capacity of any external party — legislative, judicial, journalistic, or community — to assess the operation of the systems the brief examines. Section VI(f) places Section V's enumerated justiciable questions in the context of the synthesized record. Section VI(g) addresses the specific July 1, 2026 inflection point that this brief was written to address, and what proceeding as designed will produce. Section VI(h) sets out what the brief asks of its readers. Section VI(i) is the closing.

b. What the Three Pillars Have Established

Pillar I — The Environmental Input. Pillar I established, with peer-reviewed and primary-source documentation, that the Alberta population is exposed to a documented profile of environmental contributors associated in the published epidemiological literature with elevated rates of disability and disability-related conditions. The contributors documented include perfluoroalkyl and polyfluoroalkyl substances (PFAS) in drinking-water sources at levels exceeding current Canadian guideline values in identified Alberta communities; pesticide and pesticide-residue exposure patterns documented in the agricultural regions of the province; legacy contamination including asbestos and lead at documented Alberta sites; consumer-waste leachate from landfill systems with documented operational deficiencies; and the disproportionate exposure of Indigenous Albertans to all of the above categories of contaminant, documented in the campaign's separate 195-page Indigenous Disability evidentiary record. Pillar I further established the documented contraction of the regulatory architecture that would, in principle, address these exposures — including the February 26, 2026 funding termination of the Alberta Water Council and the simultaneous termination of the Clean Air Strategic Alliance.

The pillar did not assert individual causation in any specific case. It documented population-level associations between environmental exposures and disability-relevant health outcomes, with the regulatory record that produced and sustained the exposures.

Pillar II — The Mitigation Collapse. Pillar II established that the educational, early-intervention, and developmental-support systems that the Government of Alberta has assumed, through statute and ministerial order, the obligation to provide, are operating in documented contraction. The Family Support for Children with Disabilities (FSCD) program is in functional collapse, with a three-year average wait for full services, an 85% rate of caseworker non-assignment at the 13.5-month mark in surveyed families, caseloads as high as 400 families per worker against a recommended maximum of 100, and an automated governmental response to families seeking status updates that no timeline can be provided. The Persons with Developmental Disabilities (PDD) program has not had its waitlist publicly reported in three years, with 70% of surveyed recipients still awaiting caseworker engagement and 41% reporting that the supports they eventually receive are not helping them. Inclusive education in the K-12 system operates against a documented implementation gap that has produced complaints proceeding through the Alberta Teaching Profession Commission's regulatory process. Each of these contractions is documented against the 2022 Auditor General's findings on FSCD that have not been remediated and against budget allocations falling below the population-plus-inflation growth threshold.

The pillar further established as a load-bearing finding the documented data opacity surrounding all three programs — that is, the documented fact that the provincial government has ceased publishing the waitlist, wait-time, and program-performance data that would permit external assessment of program function.

Pillar III — The Economic Output. Pillar III established that the income-support architecture for adult Alberta residents with permanent disabilities is undergoing documented restructuring through the AISH-to-ADAP transition taking effect July 1, 2026 under the framework of Bill 12 (passed December 9, 2025). The transition: reduces the base monthly benefit by \$200 from the prior AISH rate of \$1,940 (the reduction taking effect after a transition-benefit period ending December 31, 2027); reduces the exempt employment income threshold from \$1,072 to \$700 per month; removes cost-of-living indexing from legislation; eliminates independent appeal rights at two operational levels (the AISH-to-ADAP transition decision itself, and the Medical Review Panel's eligibility determinations); and operates against a Canada Disability Benefit clawback unique to Alberta among Canadian jurisdictions, with documented annual provincial fiscal effect of approximately \$190 million captured from federal anti-poverty payments intended for the affected population.

The pillar further established that the program's stated employment premise rests on a structural assumption (that AISH recipients possess employment capacity that the AISH program structure has not enabled them to express) which is not, on the documented record, supported by either the caseload data (83.6% of recipients with zero employment income under a program that has never prohibited work) or the federal Statistics Canada data (26.4% employment rate for persons with severe disabilities). The \$185 million provincial allocation to ADAP employment supports equates

to approximately \$2,334 per person, against documented per-person support costs of \$10,000 to \$50,000, and against an Alberta Heritage Savings Trust Fund whose Q3 2025-26 single-quarter growth (\$383 million) exceeded twice the entire \$185 million employment allocation, and whose 2024-25 investment return (\$2.6 billion, 9.6% on \$27.2 billion) was approximately fourteen times that allocation. The fiscal context within which the transition is presented as necessary does not, on the documented record, establish necessity.

The pillar further established that the transition reverses 79,290 prior governmental findings of permanent disability without new evidence, without published criteria for the reversal, and (under Bill 12) without the independent appellate mechanism that would have reviewed the new determinations. As of the date of this brief, the operational specifications of the program — including the Ministerial Order setting the actual benefit calculation rates — have not been issued.

c. The Compound Pattern — The Simultaneity Finding

The three pillars collectively document patterns operating on the same population in the same lifetimes through the same provincial governmental ministry structure. This is the brief's principal thesis, and it requires direct articulation.

A child born today in Alberta to a household receiving disability support is born into the conditions Pillar I documents. As that child grows, the developmental and educational supports that would, under the province's stated policy commitments, be available to address any disability profile that emerges are the supports Pillar II documents as in functional contraction. As that child reaches adulthood, the income-support architecture that would, under the program structure that has existed since 1979, provide the basis for an independent adult life is the architecture Pillar III documents as undergoing the most consequential restructuring in its forty-seven-year history.

The same household, in the same year, may simultaneously be: (a) waiting for a FSCD caseworker who has not been assigned at the 13.5-month mark; (b) navigating an inclusive-education classroom whose practical operational capacity does not match the province's policy commitment; (c) receiving an AISH benefit whose buying power has been reduced by the documented combination of the CDB clawback, the community-housing rent increase, and the impending ADAP transition; and (d) preparing, in the parental adult, for a child's transition into a PDD program whose waitlist has not been publicly reported in three years.

These are not four independent administrative experiences. They are four points of contact between the same family and the same provincial government, in the same year, mediated through what is in operational terms the same ministry.

The compound pattern, therefore, cannot be assessed by examining any single program in isolation. The compound pattern is what the three pillars examined together establish. The disability that Pillar I documents at the level of population exposure becomes the disability that Pillar II's mitigation systems are documented as failing to support, becomes the adult condition that Pillar III's income-support restructuring is documented as further reducing the means to manage.

The compensatory architecture that each system was, in policy terms, designed to provide for the failures of the others is documented as unavailable in each. The mathematics of compound failure produces an outcome that is not the sum of the three failures considered separately. It is a multiplicative function of three simultaneous failures operating on the same person, on the same day, with no external system available to compensate for any of them.

This is the structural finding of this brief.

d. The Documented Government Trajectory

The compound pattern is not the consequence of governmental inaction. It is the consequence of documented governmental action across the period from 2019 through 2026. The intent arc set out in Pillar II Section III(f) and incorporated by reference in Pillar III sets out the documented sequence: Premier Kenney's 2019 de-indexation of AISH; the Kenney government's 2020 review of provincial income-support programs; Premier Smith's 2022 partial re-indexation; the 2023-2024 freeze on AISH applications and FSCD caseworker contracts; the January 2025 publication of Inclusion Alberta's surveys and the simultaneous defunding of advocacy organizations; the Budget 2025 reductions; the July 2025 Canada Disability Benefit clawback; the October 2025 community-housing rent increase by ministerial order; the November 2025 Inclusion Alberta opposition to Bill 12; the December 9, 2025 passage of Bill 12; and the July 1, 2026 ADAP transition.

The arc spans two premierships, multiple cabinet reorganizations, two ministerial portfolios, and the deliberate enactment of legislation. It is not the unintended consequence of administrative drift. It is the documented outcome of a sequence of governmental decisions, each documented in budget documents, ministerial communications, legislative records, and primary-source reporting. The trajectory, considered as a trajectory, is the documented governmental position.

The brief makes no claim about the motives of any individual decision-maker within that trajectory. The brief documents the trajectory as a documented governmental fact and notes that the operational outcome of the trajectory — for the population this brief concerns — is the compound condition described in Section VI(c).

e. The Data Opacity Thread

The load-bearing finding of Pillar II Section III(e) — that the provincial government has ceased publishing the data that would permit external assessment of the programs the brief examines — is not confined to Pillar II. The same finding operates in Pillar III, where the operational specifications of the ADAP program have not been published 71 days before the program's launch. It operates in the consultation context, where the "thousands" of consultation participants the government has cited have not been disaggregated by recipient status or any other category that would permit external assessment of who was actually consulted. It operates in the fiscal-modelling context, where the financial modelling that would substantiate the government's representation that ADAP improves recipient outcomes has not been published. It operates in Pillar

I, where the regulatory monitoring infrastructure whose data would permit assessment of environmental-exposure trends has been documented as undergoing contraction.

The data-opacity thread is therefore not a methodological footnote attached to any single pillar. It is a documented condition of the systems this brief examines, and it has substantive implications for every constitutional and administrative-law question Section V identifies. Procedural fairness requires notice of the criteria that govern administrative decisions; the criteria have not been published. Section 15 substantive-equality analysis requires the evidentiary basis for asserting that adverse-impact discrimination has occurred; the data necessary to construct that basis externally has been suppressed. The Crown's section 1 burden requires demonstration of the rational connection between means and stated objective; the evidence base supporting an affirmative answer has not been provided.

The cumulative effect of the data opacity finding is therefore to increase the burden on external parties — including the courts, where any litigation may proceed — to construct the evidentiary record that the Government of Alberta's published documentation does not provide. That increased burden is, in itself, a documented operational consequence of the governmental decisions documented across the brief.

f. The Justiciable Questions in Context

Section V of this brief enumerates seven justiciable questions raised by the documented findings of the three pillars and the legal frameworks set out in that section. The synthesis of those questions, considered together, is as follows.

The questions identified concern, at minimum: the procedural-fairness adequacy of an administrative restructuring affecting 79,290 Albertans whose criteria are not yet published; the section 15 equality implications of a two-tier disability classification system that defaults the majority of disability subgroups to a materially inferior benefits regime; the section 7 implications of a documented income reduction applied to a population whose existing income is documented to be at or below the poverty line in the cost-of-living context within which the population lives; the federal-provincial implications of a dollar-for-dollar provincial clawback of a federal anti-poverty benefit whose statutory intent was that it reach the affected population; the international-law implications under the United Nations Convention on the Rights of Persons with Disabilities, particularly Articles 12, 13, 19, and 28; the section 1 justification burden the Crown would bear on a properly developed record in respect of any established infringement; and the appropriate remedial framework under section 24 of the Charter and section 52 of the *Constitution Act, 1982* should the questions identified resolve in favour of an established infringement.

These questions are not yet before the courts. The brief identifies them, as the documented record presents them, for the consideration of the legal community, the legislative branches of federal and provincial government, and the legal practitioners who are now engaging with the documented arrangement. Their resolution is reserved to the proper processes — judicial, administrative, and

legislative — through which constitutional and administrative-law questions are properly adjudicated and addressed.

g. The July 1, 2026 Inflection Point

The brief is written, in the timeline sense, in the seventy-one-day period preceding the July 1, 2026 effective date of the AISH-to-ADAP transition. That date is the operative inflection point of the documented arrangement. After that date: 79,290 Albertans transition by default to the ADAP-stream, with the AISH-stream retained only by those falling within the documented exemption categories or successfully reapplying through the Medical Review Panel process. The reapplication process operates against an Alberta primary-care system in which 650,000 Albertans have no family physician and 164 medical practices accept new patients province-wide. The independent appellate review that would have caught approximately 37% of incorrect eligibility determinations under the prior framework — the 1,218 incorrect decisions corrected across the documented 19 quarters of Citizens Appeal Panel performance — does not exist for the new framework's eligibility decisions.

What proceeds as designed on July 1, 2026 is therefore the operational implementation of every documented finding of Pillars II and III, in the structural environment Pillar I documents, against the constitutional and administrative-law questions Section V identifies. The brief does not assert that the transition will not proceed; it documents what proceeding as designed will produce, on the available evidence.

The window in which legislative reconsideration, ministerial action, judicial intervention, federal coordination, or other corrective mechanism can take effect before the operational inflection point is, at the date of this brief, brief.

h. What This Brief Asks

This brief asks the following of its readers, in proportion to the role each occupies.

Of legal practitioners and constitutional-law clinics. This brief identifies the justiciable questions raised by the documented record. It is not a litigation pleading. It does not substitute for the case-development, evidentiary, and procedural work that any potential litigation would require. It is offered as a foundation document — sourced, dated, framed in the legal register that legal readers can directly use — from which the case-development work can proceed if and where legal practitioners and the affected population determine that proceeding is warranted.

Of the legislative branches. This brief asks both the Alberta Legislature and the Parliament of Canada to consider the documented record presented here in the exercise of their respective constitutional functions. For the Alberta Legislature: reconsideration of the operational provisions of Bill 12, particularly the elimination of independent appeal rights and the operational specifications of the Medical Review Panel framework. For the Parliament of Canada: consideration of the federal-provincial dimension of the Canada Disability Benefit clawback, the

operation of the Canada Disability Benefit Act in a jurisdiction that has captured the entire benefit through provincial program design, and the appropriate federal response within the framework of section 36 of the *Constitution Act, 1982*.

Of the federal Standing Committee on Human Resources, Skills and Social Development and the Status of Persons with Disabilities of the House of Commons. The campaign has separately submitted material on the AISH-to-ADAP transition to the Committee. This brief incorporates and extends that material, and asks the Committee's consideration in any continuing review of disability-policy implementation under federal mandate.

Of the United Nations Special Rapporteur on the Rights of Persons with Disabilities. The campaign has separately corresponded with the Office of the Special Rapporteur. This brief incorporates and extends that correspondence, and reaffirms the request for the Special Rapporteur's consideration of the documented arrangement against Canada's UNCRPD obligations.

Of journalists and public-interest researchers. Every factual proposition in this brief is sourced to a primary-source document identified in the body or in the corresponding section of the campaign's broader documentation. The data opacity finding identified throughout the brief is not a barrier to reporting on the documented record; it is a part of the documented record.

Of the affected population and the disability community of Alberta. The brief documents what the documented record establishes. It does so in the legal-academic register because that is the register the audiences identified above operate in. It does not substitute for the personal impact submissions that members of the affected population have filed and may continue to file in their individual capacities, and which carry the lived weight no document of this register can convey.

Of every reader. The brief asks that the documented record be considered. The implications of considering it are matters for each reader to determine within the role each reader occupies.

i. Closing

This brief documents a structural arrangement in which a provincial government has, across multiple premierships and the documented decisions of multiple ministers, produced and sustained a condition in which the population of disabled Alberta residents is exposed to environmental contributors to disability documented in the peer-reviewed literature; offered mitigation systems documented as in operational contraction; and presented, on July 1, 2026, with an income-support restructuring that reduces base income, removes independent appeal, claws back the federal anti-poverty supplement that was specifically designed to reach the affected population, and reverses 79,290 prior governmental findings of permanent disability without new evidence and without published criteria — all within a fiscal context in which the documented annual cost of full reversal would equal approximately ten percent of one year's investment return on the Alberta Heritage Savings Trust Fund, whose founding statute identifies improving the quality of life of Albertans as its operative objective.

The pattern is not ambiguous. The documentation is not contested at the level of primary source. The decisions that produced the pattern are documented, dated, and attributable. The data the government has chosen not to publish is documented as not published. The operational consequences of the documented arrangement, for the population the arrangement concerns, are foreseeable on the available evidence.

A government that knows the cause and effect of its own decisions, and that has the documented fiscal capacity to act otherwise, and that has chosen the arrangement this brief documents, has placed before the legal, legislative, and constitutional architecture of Canada a question to which that architecture is being asked to respond.

This brief is one part of that response. It documents what the public record establishes. It identifies the justiciable questions the public record raises. It does so before July 1, 2026, in the period within which the response of the architecture remains operative.

The response itself — judicial, legislative, federal, international, community — is reserved to the architecture.

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